

WHERE THIS GOES, WHAT IT COSTS, AND WHAT YOU DO NOT FILE

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

WHAT THIS IS, IN ONE LINE

An administrative request asking the Alaska Department of Public Safety, or the agency that owns the disputed data, to correct an inaccurate or incomplete entry in your criminal justice information under AS 12.62.170. It is not a court filing.

THE BOUNDARY - READ THIS BEFORE ANYTHING ELSE

The recorded rule is exact: a disagreement about whether an ACCURATE event should be sealed or expunged is NOT a correction claim. This route is for a record that is WRONG. If your record is right and you want it hidden, this is the wrong instrument, and Alaska's sealing route under AS 12.62.180 is a different packet.

WHERE IT GOES

The form prints its own destination: Submit forms to: Criminal Records and Identification Bureau, 5700 East Tudor Road, Anchorage, Alaska 99507. Telephone: (907) 375-6410. Fax: (907) 269-0363. Email: dps.chri@alaska.gov.

The recorded initial destination is DPS or the responsible originating agency. If the wrong entry belongs to another agency's record, that agency is the destination; the Bureau's own number above is where to ask which yours is.

If DPS does not hold the information, DPS forwards the request itself and sets that agency a due date - the form's own decision block records that step on its face. You do not chase the other agency.

WHAT YOU DO NOT FILE

No petition. No motion. No proposed order. No certificate of service. No case number, because there is no case. Nothing on this route goes to a court.

WHAT IT COSTS

Nothing is asked of you in this packet, and no held source states a charge for submitting the request. The form prints no fee. The Bureau publishes what it charges and the form gives you four ways to ask: (907) 375-6410, fax (907) 269-0363, dps.chri@alaska.gov, or 5700 East Tudor Road, Anchorage, Alaska 99507. One recorded cost is real and is not a fee for the request: you will generally need your own Alaska criminal history record to point at the entry, and the compiled Alaska profile records "DPS criminal history record - DPS fee - To confirm what records exist" without an amount. Ask the Bureau. Alaska's other published charges are not this route's charges. The same profile prices a TF-810 Courtview exclusion at typically \$0, an SIS set-aside motion, and an AS 12.62.180(b) SEALING request as agency-dependent. Those are different statutes and different instruments, and this packet does not borrow their figures.

There is no fee waiver because there is no filing fee.

WHO ELSE HAS TO BE TOLD

Nobody. There is no opposing party and no certificate of service. Send it once, keep dated proof, and let DPS forward it if it has to.

IF IT IS DENIED

The form's own footer: Per 13 AAC 68.200, you may appeal a denial to the Commissioner of Public Safety.

After a final adverse decision, the recorded route is judicial review by administrative appeal to the Alaska Superior Court under the applicable appellate rules - and the recorded decision says in terms that that appeal is NOT an ordinary self-help record-clearing packet. Take it to a lawyer. Nothing here prepares either appeal.

WHEN TO STOP AND GET HELP

- the record is accurate and you want it sealed rather than corrected;
- the request is denied;
- the entry came from another state or from a federal agency - the Commissioner cannot reach records that did not originate in Alaska;
- somebody has been using your identity and you do not know what else was done in your name;
- any immigration question is involved.

WHAT THIS PACKET IS NOT

The Department's own form CRI-103 delivered as issued, plus this route sheet and an evidence checklist. Not a court filing, not a petition, not a sealing request, not either appeal, not legal advice, not sent for you, and not a promise that the Department will correct anything.

Route: obligation:unattached-decision-route:AK:ak-correct-record

STATE OF ALASKA
DEPARTMENT OF PUBLIC SAFETY
REQUEST TO CORRECT CRIMINAL JUSTICE INFORMATION
in the Alaska Public Safety Information Network (APSIN)

Submit forms to: Criminal Records and Identification Bureau
5700 East Tudor Road, Anchorage, Alaska 99507
Telephone: (907) 375-6410 Fax: (907) 269-0363
Email: dps.chri@alaska.gov

Requester Name (if not subject): _____
Subject Name: Maria-Alejandra O'Shaughnessy-Whitfield
Maiden/Alias name: _____
Mailing Address: 1188 Upper Kuskokwim Crossing Road, Apartment 14B
City/State/Zip: Ketchikan Gateway Borough, Alaska 99901-2214
Drivers License State / #: _____
Date of Birth: 1968-12-31 SSN: _____
Telephone #: (907) 555-0199 ext. 4417 Fax #: _____
Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org
Other (cell or message #) _____

Complete this section if the information believed to be inaccurate or incomplete in your APSIN criminal history was or will be used to deny a right or a privilege:

Right or privilege: _____
Date and time granted / denied: _____
Person responsible for granting or denying privilege:
Name: _____
Title: _____
Mailing Address: _____
Telephone: _____

What is the problem with your criminal history? Be specific. Use the back of form to explain. **If court documents are available they must be attached.**

- ☐ **MISTAKEN IDENTITY / FALSELY ACCUSED:** I was not arrested for (or charged with) this crime; information in my criminal history record identifying me is inaccurate. If you choose this reason, please make arrangements through this office to have your fingerprints taken. Provide the name of the person using your identity (if known).
- ☐ **PERSONAL DESCRIPTORS IN ERROR:** The record shows personal descriptor information such as name, date of birth, or Social Security Numbers that are wrong. Provide documentation to correct information.
- ☐ **CHARGE INFORMATION IN ERROR:** The record shows the charge but something is wrong (e.g., the record shows DWI but the charge was reduced; the charge is listed as a felony but was reduced to a misdemeanor).
- ☐ **MISSING / WRONG COURT OR PROSECUTOR DISPOSITION INFORMATION:** The record shows a disposition but it is wrong (e.g. The record shows guilty but the charge was dismissed). Explain.
- ☐ **SET ASIDE INFORMATION IS MISSING:** APSIN does not show that the conviction was set-aside. If you received a Suspended Imposition of Sentence (SIS) which was later set-aside, it will remain in APSIN. The disposition will change from "SIS" to "Set-Aside". Attach documents showing the conviction was set-aside.

Unsworn Falsification Statement

I certify under penalty of unsworn falsification (AS 11.56.210) that the information I am supplying on and with this form is true and correct.

Record Subject's Signature

Date

DPS Received: _____ ☐ DPS has information: ☐ Approved ☐ Denied
☐ DPS does not have information; forwarded to: _____ on _____ Due: _____
☐ Based on response received or lack of response by deadline, request ☐ Approved ☐ Denied

Per 13 AAC 68.200, you may appeal a denial to the Commissioner of Public Safety.

EVIDENCE CHECKLIST - WHAT THE CHALLENGE MUST IDENTIFY AND WHAT TO ATTACH

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

The recorded decision says a challenge under AS 12.62.170 should identify six things. Write each one out here, then copy or attach it to the form. The form's own instruction is: "What is the problem with your criminal history? Be specific. Use the back of form to explain. If court documents are available they must be attached."

1. THE PRECISE ENTRY. Which entry in your criminal justice information is wrong. Identify it exactly as your DPS criminal history record prints it, not by description.

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2. WHY IT IS INACCURATE OR INCOMPLETE. What specifically is wrong with it, or what is missing from it.

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3. THE CORRECT DISPOSITION OR DATA. What the entry should say instead.

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4. THE ORIGINATING AGENCY AND CASE. Which agency created the entry, and the case or incident number it belongs to.

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5. SUPPORTING DOCUMENTATION. The recorded list is: certified disposition, identity documents, and fingerprints where required. Tick what you are attaching and name each document.

☐ Certified disposition from the court that handled the case

☐ Identity documents

☐ Fingerprints - required by the form itself if your reason is mistaken identity or false accusation; make arrangements through the Bureau to have them taken

☐ Other court documents - the form requires these to be attached if they are available

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6. THE CORRECTION REQUESTED. State plainly what you are asking the record-holder to do.

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AND ONE THING THE FORM ADDS. If your reason is mistaken identity or false accusation, the form asks for the name of the person using your identity, if known.

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A REMINDER ABOUT WHAT YOU ARE SIGNING. The form carries an unsworn falsification statement: you certify under penalty of unsworn falsification (AS 11.56.210) that the information you supply on and with the form is true and correct. Everything you write above travels under that certification.

Route: obligation:unattached-decision-route:AK:ak-correct-record